

## COURT ONLINE COVER PAGE

IN THE LABOUR COURT OF SOUTH  
AFRICA HELD AT CAPE TOWN

CASE NO: **2026-077546**

In the matter between:

**Wilbur William Matthee**

Plaintiff / Applicant

and

**Afrocentric Health (RF) (PTY)  
LTD, Medscheme Holdings (PTY)  
LTD, Afrocentric Investment Corporation  
Limited**

Defendant / Respondent

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### Application for Default Judgment (Rule 31(2))

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**NOTE:** This document was filed electronically by the Registrar on 5/5/2026 at 3:09:09 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED BY:

**Registrar of The Labour Court,  
Cape Town**

**IN THE LABOUR COURT OF SOUTH AFRICA**  
**CAPE TOWN**

Case No: **2026-077546**

In the matter between:

**WILBUR WILLIAM MATTHEE**



Applicant

and

**AFROCENTRIC HEALTH (RF) (PTY) LTD**

First Respondent

**MEDSCHEME HOLDINGS (PTY) LTD**

Second Respondent

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**NOTICE OF APPLICATION FOR DEFAULT JUDGMENT**

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KINDLY TAKE NOTICE THAT the Applicant hereby applies to the Registrar of the Labour Court to set this matter down on the unopposed roll for default judgment against the First and Second Respondents in terms of **Rule 16** of the Rules for the Conduct of Proceedings before the Labour Court.

**THE GROUNDS FOR THIS APPLICATION ARE:**

1. The Applicant's Notice of Motion and Founding Affidavit were served on the Respondents via email on **13 April 2026 at 22:03**. Service effected after 16:00 is treated as having been effected on the following business day. Accordingly, service is deemed to have been effected on **14 April 2026 (Day 0)**.
2. The statutory period of 10 business days for the Respondents to file a Notice of Intention to Oppose expired at the close of business on **29 April 2026**, accounting for the public holiday on 27 April 2026.
3. The Respondents have failed to serve or file a Notice of Intention to Oppose or any answering papers. The matter is accordingly **unopposed**.



**THE RELIEF SOUGHT IS:**

1. An order declaring the deduction of **R14,811.77** from the Applicant's July 2025 remuneration to be unlawful, unilateral, and in direct contravention of Section 34(1) and Section 34(2) of the Basic Conditions of Employment Act 75 of 1997.
2. An order compelling the First and Second Respondents, jointly and severally, to repay the unlawfully recovered amount of **R14,811.77** to the Applicant.
3. Interest on the aforementioned amount at the prescribed legal rate, calculated from **23 July 2025** to the date of final payment.
4. Costs of this application.
5. Further and/or alternative relief.

**DATED AT CAPE TOWN ON THIS 30  
TH DAY OF APRIL 2026.**



**WILBUR WILLIAM MATTHEE**

Applicant (Self-Represented)

Email: info@ethichawks.co.za

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**TO: THE REGISTRAR OF THE LABOUR COURT, CAPE TOWN**

